



Data Protection Education
Unit 1, Saltmore Farm
Hinxworth
Hertfordshire
SG7 5EZ

25 March 2020

Dear Mrs Stock,

I am responding to your letter to St Michael's C of E Primary School and reference my earlier correspondence.

Firstly - to clarify the date of my letter. An obvious mistake as I am sure you are aware I couldn't have responded prior to the event. I'll refer instead to this as the letter sent on 29 November (2019).

In reference to the 72-hour notification, this was addressed in my 29 November letter and I ask you to refer to that. I re-iterate, the 72-hour notification requirement only applies to notifications to the regulator.

In relation to the "alarming, intimidating and threatening emails, phone calls on landline and mobile, and texts from unknown senders" can you please provide me with some evidence of these? And I will investigate as best I can. If you can send me a sample of the emails I can investigate if they are related to any known exploits.

However, as in my letter of 29 November, it may be very difficult to relate cause and effect to this data breach, especially as no-one else whose data was involved have reported the same issues and the difficulty of having complete 'before and after' data.

The right to compensation under GDPR is explicit in Article 82 and Recital 164 which (Art 82.1) states that: "Any person who has suffered material or non-material damage as a result of an infringement of this Regulation shall have the right to receive compensation from the controller or processor for the damage suffered."

However, this is not an automatic process, but rather something decided by the courts (Art 82.6), not the Information Commissioner's Office unless the data controller offers compensation.

In this case, the school has confirmed that they won't be offering any compensation in relation to this incident.

As the Data Protection Officer, we do not get involved with compensation or its negotiation if that is a direction you wish to take. However, we have advised the school (in a non-legal capacity) that in order for compensation to be offered it would have to be proven that the data was misused, rather than destroyed and that evidence of this misuse directly relates to any subsequent harm.

As for levels of compensation, any resulting damage would have to be assessed as to whether it meets a threshold for compensation and if it does, to decide the level of compensation offered. The only place to do this fairly is in a court - as courts in other jurisdictions have ruled that infringement of GDPR doesn't automatically result in compensation - it's to do with the level of resulting harm. If that is a route that you wish to take, then I recommend that you seek independent legal advice.

The Information Commissioner's Office has further information here:

<https://ico.org.uk/your-data-matters/data-protection-and-journalism/taking-your-case-to-court-and-claiming-compensation/>

I am happy to provide any information I can to you in relation to this matter, but I cannot offer you any legal advice.

Once again, the school's response and indeed this letter do not in any way prevent you from exercising your rights by complaining to the Information Commissioner's Office at:

The Information Commissioner's Office
Wycliffe House
Water Lane
Wilmslow
Cheshire
SK9 5AF
(telephone: 0303 123 1113; website www.ico.org.uk)



You should reference case number IC-24516-X9T8.

If you have any other questions, then please feel free to contact me.

Sincerely,

James England

Director

LL.M.

CIPP/E CIPM

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